

In the Supreme Court of Bangladesh
High Court Division
(Special Original Jurisdiction)

Present:

Mr. Justice Md. Bazlur Rahman

And

Mr. Justice Syed Mohammed Tazrul Hossain

Writ Petition No. 82 of 2010

Mohammad Kamruzzaman

Son of Mohammad Mongol Miah

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Baitul Aman Housing

PS & Post Office: Adabor

Mohammadpur

Dhaka -1207.

Versus

Shahjalal University of Science & Technology,
represented by its Vice Chancellor and others

Mr. M. Belayet Hossain, Senior Advocate with

Mr. M. Mahmudul Hasan, Advocate with

Mr. M. Shubho Shattha Rafiq, Advocate with

Mr. Habib Baher Arif, Advocates

..... For the petitioner

None appears

... For the respondents

Heard on: 20.02.2025, 06.03.2025,

13.03.2025, 30.04.2025 and

Judgment on: 07.07.2025

Syed Mohammed Tazrul Hossain, J:

1. In this application filed under Article 102 of the Constitution of the People's Republic of Bangladesh, a Rule Nisi was issued calling upon the respondents to show cause as to why the impugned decision of the respondent No. 2, dated 14.07.2009 taken to dismiss the petitioner [a Lecturer in the Department of Political Studies of the respondent No. 1, University] from his service without following the due process of law and the impugned memorandum being No. Reg: 04 (598) 4/419, dated 23.07.2009 issued by the respondent No. 5 on behalf of respondent No. 4 upon the petitioner purportedly dismissing him from the service (Annexure -F) should not be declared to have been passed and issued without lawful authority and are of no legal effect and/or such other or further order or orders passed as to this Court may seem fit and proper.

2. Petitioner's case, as set out in the Writ Petition, in short is that the petitioner joined the respondent No. 1 University as a Lecturer in the Department of Political Studies on 19.12.2006. His service was made permanent on 27.06.2007. Thereafter, the petitioner was appointed as the Assistant Proctor of the University on 29.01.2008. On 01.07.2009 respondent No. 6 issued a notice upon the petitioner asking him to appear before a three member enquiry committee headed by the said respondent. Petitioner appeared before the said enquiry committee. He was asked some random questions which he answered. Thereafter, a

show cause notice, dated 16.07.2009 was issued upon the petitioner stating that some allegations of moral turpitude was proved against him and he was asked to show cause as to why he should not be dismissed. The petitioner received the said show cause notice on 20.07.2009 and on 22.07.2009 he submitted an application for extension of 10 days' time to reply to the show cause as he at the time was ill. Then, the authority without affording any extension of time for showing cause, dismissed the petitioner vide impugned Notice, dated 23.07.2009. Thereafter, the petitioner preferred an appeal on 28.08.2009 before the Vice Chancellor requesting him to set aside his dismissal. subsequently vide a letter, dated 08.11.2009, respondent No. 7, the purported complainant wrote to the authority to withdraw her allegations against the petitioner. The appeal of the petitioner has never been disposed of and hence the petitioner preferred the instant writ petition and obtained Rule.

3. Since this matter was fixed for hearing, it appeared in the daily cause list for hearing on many dates over a long period of about 3 months and thereafter the matter was heard on a few occasions. From the records it appears that Mr. Khizir Ahmed, learned Advocate had submitted vokalatnama on behalf of the respondent No. 1, but when the matter was taken up for hearing none appeared to contest the rule.

Submissions of the petitioner:

4. Mr. M. Belayet Hossain, learned Senior Advocate along with Mr. M. Mahmudul Hasan and Mr. M. Shubho Shattha Rafiq and Mr. Habib Baher Arif, learned advocates appearing on behalf of the petitioner placed the writ petition. Right at the beginning Mr. Hossain submitted that since the petitioner during his student life was involved with the student wing of the political party opposing to the governing party at the time of the alleged occurrence and hence he was a victim of the teachers' politics in the university. The allegations brought against him were designed to malign the reputation of the petitioner and to jeopardize his career.

5. He submitted that the allegations brought against the petitioner were in deed of very serious in nature, yet the authority failed to form an enquiry committee in accordance with law. The so called enquiry committee which was formed under the convenorship of respondent No. 6 to enquire the allegations against the petitioner refrained from supplying him with a copy of the complaint even though the petitioner requested for the same. The notice, dated 01.07.2009 with which he was asked to appear before the enquiry committee also did not contain any detail of the complaint filed against the petitioner thus the petitioner was deprived of any opportunity to effectively refute the allegations brought against him.

6. He submitted that Rule 5 of the Karmachari Srinkhala Addhadesh 1992 lays down a basic scheme while any disciplinary action is taken against any teacher and or employee of the respondent No. 1 University. But, in the instant case the respondents did not comply with any of the requirements as laid down under the said Rule. Rule 5 requires that before imposing any penalty against an accused person, he must be heard, a formal charge must be framed and then he shall be given an opportunity to refute the allegations brought against him. The authority must consider the response of the accused person, if there is any, and then it may impose the penalty as mentioned in the show cause notice. In the instant case no such formalities were maintained and the authority has acted hurriedly and dismissed the petitioner with pre-meditated objective and intention.

7. He further submitted that the 1st show cause notice was issued upon the petitioner on 16.07.2009 and in the said notice it was mentioned that the Syndicate of the University has taken a decision on 14.07.2009 to dismiss the petitioner from his service. It is completely malafide which shows that the respondent has acted with malice and they had already taken a decision to dismiss the petitioner without even having receipt of any response from the petitioner, this shows that the respondents have acted without jurisdiction and with complete contempt of procedural propriety and fairness.

8. Mr. Hossain then submitted that the authority has exceeded its power when it took a decision to dismiss the petitioner before even completion of mandatory formalities for imposition of any penalty upon the petitioner. Therefore, the said decision is ultra vires for the authority for committing a wrong in law for the constitutional due process and statutory procedure.

9. He then submitted that since action of the respondents has been without jurisdiction hence availability of forum of appeal would not be a bar in filing the instant writ petition. In this regard he submitted the decision of our Apex Court passed in **Dhaka Warehouse Ltd. Vs. Assistant Collector of Customs and others**, reported in 1991 BLD (AD) 327.

10. He submitted that since the respondent failed to appear before the Hon'ble Court and refrained from contesting the rule, the assertions made by the petitioner should be accepted being true and genuine depiction of the facts of the matter. In this regard he submitted the decision of our Apex Court passed in **Government of Bangladesh and others Vs. Md. Gazi Shafiqul and others**, reported in 19 BLC (AD)163.

11. He further submitted that the allegation brought against the petitioner was of sexual harassment of a student of the respondent No.

1 university, but the authority has failed to follow the proper procedure to find out the genuineness of the allegations rather the respondents have used a mere allegation as a vehicle to get rid of the petitioner out of the university. He then submitted that had the authority shown intent to find out the true facts, they would have found that the petitioner was innocent and was not at all involved with any offences as alleged by the respondent No. 7 in her complaint, dated 22.06.2009, because following termination of the petitioner the respondent No. 7 voluntarily wrote a letter, dated 08.11.2009 to the respondent No. 1 to withdraw her allegations against the petitioner wherein she stated that some influential quarter with a malafide intention had made her file the complaint in the first place and the allegations were not true.

12. Mr. Hossain submitted that occurrences of abuse and sexual harassment of girl children and women in employments, educational institutions and other places are of serious concern and any such allegations are to be dealt with utmost sincerity, procedural propriety and care to find out the truth and punish the offender. He referred the decision of **Bangladesh National Women Lawyers Association (BNWLA) represented by its executive director, Ms. Salma Ali Vs. Government of Bangladesh and others**, reported in **29 BLD (HCD) 415**. In the said judgment a brief guideline has been laid down by this Division to deal with any allegation of abuse and sexual

harassment of a women in work place, educational institutions and other places, but in the instant case, the respondents have failed to follow the said guidelines and committed a procedural impropriety and acted unfairly in terminating the petitioner and he prayed for making the rule absolute.

Findings and deliberations:

13. We have heard the learned advocates for the petitioner, carefully perused the writ petition and the annexures adduced with it and considered the applicable laws and Rules and the judgments referred by the learned advocates for the petitioner.

14. Before going into the merit of the case, let us address the issue of maintainability. Apparently a remedy by way of appeal under section 59 of the Shahjalal University of Science and Technology Act, 1987 and by way of appeal and review under Rule 6 of “Karmachari Sringkhola Odhadesh, 1992” (hereinafter referred to as the "Odhadesh, 1992") is available against any punitive action taken under the said Odhadesh. Following termination of the petitioner by respondent No. 1, he filed an appeal, dated 25.08.2009 and the petitioner maintained that the authority never disposed of the said appeal. Apart from the said fact, the petitioner asserted that the authority acted ultra vires to the provision of applicable rules; and that his fundamental rights guaranteed under Article 27 and 31 of the

Constitution has been violated. In the case of **Dhaka Warehouse Ltd. And another Vs. Assistant Collector of Customs and others** reported in **1991 BLD (AD) 327** it was held that in principle, where an alternative statutory remedy is available, an application under Article 102 may not be entertained to circumvent a statutory procedure. Petitioner in the instant case has filed an appeal, but the respondents have rendered the same redundant by not disposing of the same. In the case of **Nuruzzaman Vs. Bangladesh** reported in **42 DLR (AD) 111**, it was held that when a petitioner alleges infringement of any of his fundamental rights as guaranteed under part III of the Constitution, the High Court Division is not precluded from entertaining a writ petition under Article 102 merely because an alternative remedy exists. Considering the above described position of our Apex Court and facts of the instant case, we find that instant writ petition is squarely maintainable.

15. From the language and contents of the complaint, dated 22.06.2009 lodged by the respondent No. 7 as quoted in paragraph No. 14 of the writ petition it appears that said respondent has brought several allegations against the petitioner. Among them the most serious is the accusation that the petitioner through coercion and undue influence compelled the complainant to engage into and maintain a physical relationship with him. Allegations of such grave

nature, particularly involving alleged abuse of authority within an academic setting, must be treated with utmost seriousness.

16. However, it must be borne in mind that, in any allegation, doesn't matter how grave and heinous it may be, the accused must be given enough opportunity to defend himself before he is contempt. While dealing with such an allegation, the authority cannot take its eye off the need to follow the proper procedure and not to act in a knee jerk fashion. Especially when there are some laid rules to deal with any disciplinary issue, such rules should be strictly followed. Deviation from such rules is not acceptable and it should not be given a waiver.

17. Admittedly, disciplinary issues related to teachers, students and employees of the respondent No. 1 university are governed under the provisions of the Odhadesh, 1992. In order to appreciate the regulatory framework applicable to such disciplinary proceedings within the said University, it would be helpful, if we briefly examine the most pertinent provisions of the Odhadesh, 1992 that bears the relevance to the issues involved in the present case.

18. Rule 1 (ka) of the Odhadesh, 1992 states that Karmachari under the Odhadesh shall include all the teachers, students, officers and employees of the university. Rule-3 stipulates the basis for imposition

of penalties; rule 3 (uma) states that if someone is guilty of misconduct he may be punished; rule-4 describes the imposable penalties which include termination from service. Rule 5 states a relatively detail provision for investigation and imposition of penalty.

19. It appears that soon as the complaint, dated 22.06.2009 was filed, respondent university authority formed a three member enquiry committee under the convenorship of the respondent No. 6. Apparently, said respondent vide a notice, dated 01.07.2009 (Annexure-C) asked the petitioner to appear before the said enquiry committee on the very next day, i.e. on 02.07.2009. Contents of the annexure-C does not disclose much details as to the allegations brought against the petitioner, nor the said notice contains any information to show that the petitioner was served with a copy of the complaint. However, the petitioner appeared before the enquiry committee and answered all the questions put to him, with the satisfaction of the enquiry committee as he claimed.

20. Thereafter, the authority issued a show cause notice, dated 16.07.2009 (annexure-D) upon the petitioner which stated that the enquiry committee has found him guilty of the allegation of moral turpitude as alleged by one of the students of his department (copy was annexed) and he was asked to show cause, within 03 (three) days as to why he should not be terminated as per a decision of the

Syndicate of the University, dated 14.07.2009. Petitioner received the said notice on 20.07.2009 while he was ill and was in Dhaka. Petitioner sought extension of time by 10 days to reply to the show cause notice, but the authority without considering his prayer imposed the penalty of termination.

21. It is found that even though the respondent No. 1 University upon receipt of the complaint did form an enquiry committee to enquire into the matter, but the said enquiry committee when asked the petitioner to appear before it and reply to some queries, it failed to disclose the contents of the complaint to the petitioner thus the petitioner was not in a position to mount a proper reply and defense against the allegations brought against him.

22. As per rule 5(1) of the Odhadesh, 1992 the authority were under an obligation to formulate a formal charge against the petitioner and then he should have been issued and served with a notice (together with the formal charge) to show cause as to why penalty under the Odhadesh, 1992 should not be imposed against him. Thereafter, the appointing authority upon hearing the petitioner, if he appeared in person, and upon considering the reply, if any given, considers him guilty of the allegations brought against him; then the authority under the provision of Rule 5(2) of the Odhadesh, 1992 should have issued a

second show cause notice upon the petitioner to show cause as to why a particular penalty should not be imposed against him. As per Rule 5(3) the authority can impose the penalty only upon complying the provisions of Rule 5(1) and 5(2) of the Odhadesh, 1992.

23. It is with great dismay, we must hold that the authority while imposing the penalty of termination against the petitioner in the instant case failed to comply with the minimum basics of the proper procedure. The authority had already taken a decision to terminate the petitioner before even issuing the very first show cause notice as required under the provisions of Rule 5 of the Odhadesh, 1992 and went on to impose the said penalty without allowing the petitioner an extension of time, as he prayed for, to reply to the allegations brought against him. Considering the relevant facts and circumstances of the instant case, it is found that the penalty imposed upon the petitioner under the impugned letter, dated 23.07.2009 cannot sustain for noncompliance of due process of applicable laws and rules.

24. From the language and contents of the complaint dated 22.06.2009, as quoted in paragraph No. 14 of the writ petition, it appears that several allegations have been brought against the petitioner. Among them, the most serious is the accusation that the petitioner, through coercion and undue influence, compelled the

complainant to engage in a physical relationship with the petitioner and continue the same for some time. Allegations of such grave nature, particularly involving alleged abuse of authority within an academic setting, must be treated with utmost seriousness. When such a complaint is made by a student against a faculty member of the same department, it warrants heightened scrutiny and concern. The way the respondent No. I authority dealt with the matter in the instant case in such a hastened manner and without following the due process is uncalled for of a University, which is supposed to be even more cautious to comply with the due process before any punitive action is taken against any of its members.

25. Although the allegations in the present case relates to events that occurred long ago, but the gravity of the accusations demands that the matter not be left in a state of doubt solely due to the failure of the competent authority to adhere to the required procedural safeguards. The petitioner has consistently and unequivocally asserted that he was innocent, and we also consider that he ought not to suffer reputational harm by allowing the allegations to stand unaddressed merely on procedural technicalities. The right to a fair procedure is a fundamental requirement of justice and it is well recognized under Article 31 of our Constitution. Article 31 guarantees that no person shall be subjected to any action detrimental to their life, liberty, body, reputation, or property, save in accordance with law. Petitioner's

assertion of his innocence also gains credence from the subsequent conduct of the respondent No. 7, who, by an application dated 08.11.2009 (Annexure-J), formally sought to withdraw her earlier complaint. In this regard, it is pertinent to recall the observation of our Apex Court in **Abdul Latif Mirza vs. Bangladesh**, reported in **31 DLR (AD) 33**, wherein it was held that procedural fairness is an essential element of the rule of law, and even in the absence of a specific statutory remedy, the High Court Division may intervene where fundamental rights are at stake. Additionally, in **Commissioner of Customs vs. Jashim Uddin**, reported in **70 DLR (AD) 221**, the Court reaffirmed that reputation is part of personal security, and any damage thereto must be tested through lawful and fair process.

26. This Division while deciding the case as reported in **29 BLD (HCD) 415** laid down a basic guideline for the educational institutions to follow in dealing with the allegations of sexual harassment. It is our considered view that in compliance of the said judgment, if the respondent No. 1 university has not already formed a complaint committee, then it should form a five member complaint committee, consisting of majority of female members and if possible under the chairmanship of a female member within 30 (thirty) days from receipt of this judgment. Said committee shall primarily enquire into any allegation of sexual harassment and furnish its report to the authority

for appropriate disciplinary actions to be taken under the applicable laws.

27. In the instant case, the complaint, dated 22.06.2007 should be referred to the above mentioned complaint committee, which shall complete its investigation report with recommendation within 30 working days to the concerned authority. Said 30 days period may be extended to upon 60 days, if it were found necessary.

28. If it is found that the complaint has been filed falsely, then a report will be submitted and the petitioner shall be re-instated with full service benefits and seniority within 30 days of submission of the said report.

29. It may further be observed that if it is found that the complaint has been filed with false allegations, the complaint committee shall recommend appropriate action against the complainant; in the instant matter, it should be exemplary since but for the complaint what could have been a bright fulfilling life of the petitioner, a promising young lecturer of a university, has been turned upside down and hopes and dreams of the petitioner as well as the individuals closely related to him has been destroyed in a reckless move of the complainant, respondent No. 7. No remorse or damages can compensate for the lost time and opportunities for the petitioner.

30. If the complainant committee finds the petitioner to be guilty of the offences as alleged in the complaint, he should be terminated from service upon following the due process as provided under the Ordinance, 1992 within a period of 30 days from the date of receipt of the report of the complaint committee and he should be referred to law enforcing agency for taking due actions under the law.

31. With the above findings, observations and directions rule in the instant matter is made absolute.

32. Communicate the judgment to the concerned court at once.

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(Syed Mohammed Tazrul Hossain,J.:)

I agree

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(Md. Bazlur Rahman,J.:)

